

COMPLAINT DRAFT

Case Reference No.	LA-00005
Case Title	Salary Not Paid for 3 Months - IT Company
Legal Category	Labor
Subcategory	Wrongful Termination
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CASE DESCRIPTION

The complainant Arun Menon worked as a software engineer at TechCorp Solutions Pvt. Ltd., Technopark, Thiruvananthapuram from January 2024. The company has not paid his salary for March, April, and May 2026, amounting to Rs. 1,35,000. The complainant has a formal employment contract, all pay slips until February 2026, and salary credit bank statements. He raised the complaint with HR via email on 1st June 2026 but received no response. The company has 45 employees and falls under the Payment of Wages Act.

AI CASE SUMMARY

Case appears to relate to Labor Disputes based on case description. Further details required from the questionnaire.

APPLICABLE LAWS & PROVISIONS

Payment of Wages Act, 1936, Section 3 — Responsibility for Payment of Wages

Every employer is responsible for payment of wages to persons employed by them on or before the wage period deadline.

Punishment: Fine up to Rs. 7,500 for first offence and Rs. 22,500 for subsequent offences

EVIDENCE STATUS

Evidence Item	Type	Importance	Status
Employment Contract / Appointment Letter	documentary	Critical	Collected
Pay Slips / Salary Records	financial	Critical	Collected
Termination Letter	documentary	Critical	Unavailable
Bank Account Salary Credit Statements	financial	High	Unavailable
Attendance Records	documentary	High	Collected
PF Account Statement (UAN passbook)	official	High	Unavailable
Email Communications with HR / Employer	digital	High	Collected

Witnesses / Co-worker Statements	testimonial	Medium	Unavailable
Performance Appraisal Records	documentary	Medium	Collected
POSH Complaint Record (if harassment)	documentary	High	Collected

RECOMMENDED ACTIONS

1. Send legal notice to employer demanding dues payment within 15 days
2. File complaint with Labour Commissioner / Assistant Labour Commissioner
3. File complaint with POSH Internal Committee or Local Complaints Committee
4. Approach EPF Regional Office for PF default complaint
5. File claim with Controlling Authority under Payment of Gratuity Act
6. File application before Labour Court / Industrial Tribunal for reinstatement
7. Approach National Human Rights Commission if employer violates fundamental rights

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